

ORDINANCE NO. A 34

TOWN OF DECATUR, MISSISSIPPI

AN ORDINANCE TO LIMIT AND CONTROL ANY LOUD, UNNECESSARY OR UNUSUAL NOISE IN THE TOWN LIMITS OF DECATUR, MISSISSIPPI.

WHEREAS, it is the desire of the Mayor and Board of Aldermen of the Town of Decatur, Mississippi to adopt in all respects the noise ordinance;

NOW, THEREFORE, BE IT ORDAINED BY THE MAYOR AND BOARD OF ALDERMEN OF THE TOWN OF DECATUR, MISSISSIPPI that an Ordinance be enacted as hereinafter set forth to be in full force and effect as provided by law:

SECTION 1. GENERAL. It shall be unlawful for any person to make, continue or cause to be made or continued any loud, unnecessary or unusual noise, or any noise that unreasonably or unnecessarily annoys, disturbs, injures or endangers the comfort, repose, health, peace or safety of others in the Town. The provisions of this section shall not apply to or be enforced against:

- (1) Any vehicle of the city while engaged in necessary public business.
- (2) Excavations or repairs of streets by or on behalf of the city, county or state at night when public welfare and convenience renders it impossible to perform such work during the day.
- (3) The reasonable use of amplifiers or loudspeakers in the course of public addresses that are noncommercial in character.
- (4) Normal noise made by private contractor construction equipment during the construction on private property.
- (5) Reasonable noises emitted from public and private schools and colleges in the form of sporting events, or any other school related function.
- (6) Reasonable noises emitted from Town permitted events such as parades, rallies or political events.
- (7) Reasonable noises emitted from churches during, normal church services and special church events.

SECTION 2. RADIOS, PHONOGRAPHS, OR OTHER MACHINES OR DEVICES THAT PRODUCE OR REPRODUCE SOUND. The using, operating or permitting to be played, used or operated any radio receiving set, musical instrument, phonograph or other machine or device for the producing or reproducing of sound in such a manner as to disturb the peace, quiet and comfort of the neighboring inhabitants, or at any time with louder volume than is necessary for convenient hearing for the person who is in the room, vehicle or chamber in which such machine or device is operated, and who is a voluntary listener thereto, shall be a violation of this article.

The operation of any such set, instrument, phonograph, machine or device is such a manner as to be plainly audible at a distance of 50 feet from the building, structure or vehicle in which is located, shall be prima facie evidence of a violation of this article.

SECTION 3. EXHAUSTS. The discharge into the open air of the exhaust of any steam engine, stationary internal combustion engine, motorboat or motor vehicle, except through a muffler or other device that will effectively prevent loud or explosive noises therefore, shall be a violation of this article.

SECTION 4. That any person or persons violating this Ordinance shall, upon conviction thereof, be punished by a fine in the amount of \$50 for the first offense, \$75 for the second offense, \$100 for the third offense and \$100 for each offense thereafter, and/or 30 days in jail for each offense.

SECTION 5. That this Ordinance be in force and take effect from and after its passage for good and important reasons shown to the Mayor and Board of Aldermen.

Approved this the _____ day of _____, 2017.